

Law firm ref.: 26/063

DEFENSE SUBMISSIONS No. 1

FOR: Mr. Marc MOSZKOWSKI, born June 25, 1954 in Coevorden (Netherlands), a French national, residing at 2080 chemin du Verdos, 26120 CHATEAUDOUBLE

*Recipient of full legal aid pursuant to decision No.
N-83050-2026-001706 of April 15, 2026 (Exhibit No. 11)*

Represented by Counsel Maître Mallory DE SOUSA
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AGAINST: DeepGulf Inc., located in the State of Florida, 7205 Suman Lane Unit A, Pensacola, FL 32526, employer identification number 20-2250919, represented by its President, Mr. Rustin Howard, electing domicile at the offices of SELAS Bignon Lebray, inter-bar law firm, Maître Julien Lecat, Hémilythe - 150 avenue Georges Pompidou, 13080 AIX-EN-PROVENCE

Represented by SELAS BIGNON LEBRAY
Acting through Maître Julien LECAT
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MAY IT PLEASE THE COURT

I. STATEMENT OF FACTS AND PROCEDURAL HISTORY:

In 2004, Mr. Marc Moszkowski, a French marine engineer and inventor based in Houston, founded DeepGulf, Inc. with Mr. Rustin Howard.

Mr. Moszkowski held 50% of the shares when the company was founded and more than 46% after 10% was sold to investors in 2008. He served as Chief Executive Officer and was responsible for all technical and commercial development. Mr. Howard, for his part, served as Chairman of the Board and was responsible for raising capital and immigration sponsorship.

During the first three years of operations, Mr. Howard raised no capital. Mr. Moszkowski received no salary, despite Mr. Howard's undertaking to pay him an annual salary of \$120,000, if necessary from his personal funds, made to the Department of Homeland Security in connection with the issuance of the H-1B visa. Subsequent capital raises were used for operating expenses and not for Mr. Moszkowski's activities or project development, to the point that the development phase was financed from Mr. Moszkowski's personal consulting income, totaling approximately \$225,000. Project execution was funded by cash flows generated by the Timorese operating entity.

In 2007, Mr. Moszkowski developed a major opportunity involving a subsea pipeline in East Timor, traveling at his own expense. He secured meetings with the President, the Prime Minister, and senior government officials of the Republic. Three contracts followed, totaling \$14.9 million, performed between 2008 and 2012, all successfully completed without Mr. Howard's involvement. Mr. Moszkowski received his first salary in 2008, but salary payments ceased in 2012 despite Mr. Howard's guarantee to DHS. The operations required Mr. Moszkowski to work in very remote locations without security; he suffered injuries from flooding, a road collapse, a violent assault, and the eighteen-day grounding of a vessel on a coral reef. In 2011, he contracted a severe form of malaria in Papua New Guinea and was hospitalized in critical condition.

Through a profit-sharing arrangement personally negotiated by Mr. Moszkowski in connection with these operations, DeepGulf received 50.3% of the profits derived from Mr. Moszkowski's 33% interest in the Timorese operating entity, while the Timorese founders, who held 67% of that entity, received 49.7%.

However, in 2018 DeepGulf claimed entitlement to 100% of the profits of the Timorese operating entity for the period from 2008 to 2012, asserting a retroactive right to \$2,622,933.67 based on its acquisition of that entity for \$100,001 in December 2012. This position included, in particular, all sums paid to the Timorese founders, DeepGulf, and Mr. Moszkowski.

It was in the context of these professional relationships that legal proceedings were ultimately brought against Mr. Moszkowski in France and Florida by both DeepGulf, Inc. and Toke Oil and Gas, S.A.

As regards the proceedings conducted in the United States, from the outset Mr. Moszkowski questioned and challenged the identity and existence of Toke Oil and Gas, as well as the information concerning the location of its registered office (Exhibit No. 6).

These matters are essential to determining the subject-matter jurisdiction of the U.S. courts. Federal diversity jurisdiction existed between DeepGulf (a Florida corporation) and Mr. Moszkowski (a French citizen). It could, however, have been defeated if Toke Oil and Gas itself were regarded as a foreign corporation, because a foreign party would then have been present on each side of the dispute.

Mr. Moszkowski then removed the case to federal court, invoking diversity of citizenship between DeepGulf, a Florida corporation, and himself, a French citizen, and arguing that the entity named “Toke Oil and Gas, Inc.,” whose existence he disputed, should be disregarded in the diversity analysis. The plaintiffs challenged neither the removal nor the jurisdiction of the federal court.

The case thus remained in federal court, with no challenge by the plaintiffs to removal and no request at that stage of the proceedings to remand the case to state court.

The federal court nevertheless rejected seven of the plaintiffs’ eight claims. On the sole claim on which relief was granted, concerning ownership of certain patents, publications, and inventions, the court essentially recognized DeepGulf’s ownership resulting from an earlier, uncontested assignment, even though most of the patents concerned had already expired through DeepGulf’s failure to maintain them. In practice, that claim therefore no longer presented a live controversy (Exhibits Nos. 9 and 10).

The plaintiff companies appealed to the federal Court of Appeals in Atlanta.

At that stage of the proceedings, the question of the Atlanta federal appellate court’s subject-matter jurisdiction was raised by the Court sua sponte.

The appellants then emphasized Toke Oil and Gas, S.A.’s purported foreign status, without substantiating it. No official document or address in East Timor was provided, despite the defendant’s requests to that effect. Only a Florida address was provided for Toke Oil and Gas. Nor did the opposing parties file a “motion to remand” asserting that Toke Oil and Gas was a foreign corporation whose presence in the litigation destroyed diversity of citizenship.

The case was nevertheless remanded to the Florida state court (Exhibit No. 1).

It was in this context that judgment was ultimately entered by the state court, the Escambia County Court in Florida, on September 3, 2025, Case No. 2018 CA 000543 (Opposing Party’s Exhibit No. 5).

A finding of civil theft was entered on the basis of a pre-suit demand letter, without examination of the underlying transactions, resulting in a judgment ordering Mr. Moszkowski to pay \$1,035,000 plus \$290,461.73 in interest.

An appeal is pending before Florida's First District Court of Appeal. By decision dated September 14, 2026, that court affirmed the judgment without a written opinion. That decision is not yet final, however, as an authorized motion for rehearing and for a written opinion is to be filed pursuant to the applicable procedural rules.

In addition, a separate federal action was filed by Mr. Moszkowski in the Western District of New York in January 2026 (Exhibit No. 11).

DeepGulf seeks recognition and enforcement (exequatur) of the judgment entered by the Escambia County Court in Florida on September 3, 2025, Case No. 2018 CA 000543.

However, that request cannot succeed because the judgment was rendered through fraud affecting the determination of federal jurisdiction in the United States and without observance of the adversarial principle.

Mr. Moszkowski, who had duly filed submissions in those proceedings, had requested to be excused from appearing at the hearing because of his health and geographic distance. His request to be excused from appearing was denied and his pleadings were simply stricken.

Under these circumstances, DeepGulf's application for exequatur must be denied.

I **DISCUSSION:**

II.1. Impossibility of granting exequatur in light of fraud affecting the determination of jurisdiction and the companies' capacity to bring legal proceedings:

The judgment for which exequatur is sought resulted from proceedings in which the presentation of the identity and alleged foreign status of Toke Oil and Gas may have affected the determination of jurisdiction and the remand of the case to state court.

From the commencement of the U.S. proceedings, Mr. Moszkowski challenged the very existence of the company named "Toke Oil and Gas, Inc.," noting that no company under that name appeared in the Florida registries. Yet the initiating pleadings presented it both as a company domiciled in Florida and, at the same time, as a DeepGulf subsidiary established in East Timor.

Only several months after the proceedings were commenced did the plaintiffs alter their presentation by stating that the company concerned was in fact "Toke Oil and Gas, S.A.," without, however, providing that company's articles of incorporation or proof that its registered office was established abroad.

Throughout the first phase of the proceedings, the plaintiffs therefore presented Toke Oil and Gas as an emanation of DeepGulf whose registered office was in Florida, a presentation that did not establish the foreign element later invoked.

Remarkably, it was only after the plaintiff companies had been denied relief in federal court that the foreign element—based on Toke Oil and Gas’s purported status as a foreign corporation—was put forward (Exhibits Nos. 9 and 10). By doing so, the plaintiffs enabled the litigation to continue in state court rather than in the federal court that had already denied their claims (Exhibit No. 1).

In other words, an element determinative of jurisdiction—the location of Toke Oil and Gas’s registered office—was successively presented in contradictory ways and was never clearly substantiated. The plaintiff companies were thereby able to return their litigation to the state level after having been denied relief by the federal court.

Nevertheless, Toke Oil and Gas’s alleged foreign status was never proven.

This is without even addressing the contradictions surrounding the governance and share ownership of the companies concerned.

This difficulty is illustrated particularly concretely by the assignment of claim dated March 16, 2026 produced by the plaintiff. The minutes of Toke Oil and Gas dated February 27, 2013 established that its board of directors consisted of two directors, Mr. Moszkowski and Mr. Howard, and that Mr. Moszkowski had been elected President of the company, while Mr. Howard had been elected Chairman and CFO:

Election of Officers

Motion was made and seconded that the officers of the corporation shall be
Marc Moszkowski, President
Rustin Howard, Chairman and CFO
Trish Taylor, Secretary
The motion passed unanimously.

(Exhibit No. 13)

Free translation:

Election of Officers

*It was moved and seconded that the officers of the corporation shall be:
Marc Moszkowski, President
Rustin Howard, Chairman and CFO
Trish Taylor, Secretary
The motion passed unanimously.*

Mr. Moszkowski has never resigned from these offices and has never been removed. Yet the March 16, 2026 instrument presents Mr. Howard as President of Toke and bears his sole signature for that company, while he also signs the same instrument for DeepGulf, the beneficiary of an assignment made gratuitously and without consideration. Mr. Moszkowski was never called to a board meeting concerning this assignment, never consented to it, and was never provided

with any board resolution authorizing it. These circumstances directly raise the question of the authority under which this assignment could have been made on behalf of Toke Oil and Gas.

This assignment thus provides a particularly concrete illustration of the governance irregularities that Mr. Moszkowski has denounced since 2018 in the operation of Toke Oil and Gas. The same difficulty arises, in particular, with respect to the company's very decision to commence legal proceedings against Mr. Moszkowski. Because Toke Oil and Gas's board consisted of only two directors, Mr. Moszkowski and Mr. Howard, no board meeting could validly be held in Mr. Moszkowski's absence for lack of a quorum. Yet Mr. Moszkowski, who has never resigned or been removed, never participated in any board meeting deciding or authorizing the commencement of this action, nor in any meeting authorizing the assignment of claim dated March 16, 2026, and no corresponding resolution has ever been provided to him.

Moreover, Mr. Moszkowski's requests for the resolutions or deliberations authorizing the commencement of the legal actions or the assignment of claim have gone unanswered.

This raises the question of the validity of the acts and legal proceedings undertaken—including the companies' capacity to sue—and raises the possibility of fraud.

These contradictions are not merely formal irregularities: they directly concern the identity of the parties, their representation, and the very conditions under which the U.S. courts could exercise jurisdiction.

In any event, it follows that the jurisdiction of the state court that rendered the judgment at issue appears to have been obtained through an artificial and evolving presentation of the identity and place of establishment of Toke Oil and Gas.

The fact that a case presents complete diversity of citizenship does not, by itself, deprive a state court of jurisdiction. Where the statutory requirements are met, however, such diversity provides access to federal court and permits the defendant to remove the case there. That is precisely what Mr. Moszkowski did on June 25, 2018, by removing the case to federal court. The plaintiffs challenged neither the removal nor the jurisdiction of the federal court and, in particular, did not seek remand of the case to state court.

It thus appears that Toke Oil and Gas was later presented as a foreign corporation even though that status had been challenged as early as June 25, 2018 and was never substantiated by the official documents requested by Mr. Moszkowski.

It was on the basis of this presentation that, several years later, the case was remanded to state court.

This presentation, made belatedly and without substantiation of the alleged foreign status, may therefore have affected the conditions under which the case was remanded to state court and may constitute fraud affecting the determination of jurisdiction.

Moreover, the companies' capacity to sue is called into question.

Accordingly, this Court cannot grant exequatur of the judgment at issue.

II.2. Impossibility of granting exequatur because of non-compliance with public policy:

Impossibility of granting exequatur because of the violation of public policy resulting from disregard of the adversarial principle:

The judgment for which exequatur is sought violates the fundamental requirements of French procedural public policy because it was rendered in disregard of the adversarial principle.

On the dates of the hearings, June 10 and 17, 2025, Mr. Moszkowski was materially and financially unable to travel to the United States.

He had informed the U.S. court of this throughout the proceedings, supported by medical certificates (Exhibits Nos. 3 to 5).

Independently of his health, all of his assets and bank accounts were subject to recurring seizures in proceedings brought before the Draguignan Judicial Court by Mr. David Rumsey, who is also DeepGulf Inc.'s principal investor.

In connection with these enforcement measures, Mr. Rumsey left in Mr. Moszkowski's bank accounts only the legally protected minimum balance, approximately €600, barely sufficient to meet his essential needs.

Under these circumstances, requiring Mr. Moszkowski to travel physically to the United States to participate in the hearings effectively deprived him of any meaningful opportunity to appear and present his defense.

Yet this obstacle was not insurmountable: Mr. Moszkowski had expressly requested permission to participate in the hearings remotely so that he could present his observations and defend his interests without having to travel physically to the United States (Exhibits Nos. 3, 4 and 5).

That request was denied.

Thus, although Mr. Moszkowski had expressed his willingness to participate in the proceedings and had proposed a concrete means of ensuring his appearance, he was deprived of any meaningful opportunity to take part in the proceedings.

His pleadings were also stricken, even though, as of May 7, 2025, he had filed no fewer than 86 pleadings and other procedural documents (Exhibits Nos. 2 and 7).

qu'avocat des plaignants. Le défendeur Marc M. Moszkowski (« Moszkowski ») n'a pas comparu. Le 12 juin 2025, le défendeur a été condamné par défaut et ses plaidoiries, y compris sa demande reconventionnelle et ses défenses affirmatives, ont été supprimées. Le Tribunal, après avoir examiné les témoignages et les preuves présentés, dont le témoignage de Rustin Howard, les pièces admises, la première plainte amendée, les lois applicables en Floride et la jurisprudence, rend le présent arrêt final.

(Opposing Party's Exhibit No. 5)

The Court's attention is drawn to the fact that the U.S. judgment finds, solely on Mr. Howard's testimony, that he allegedly did not discover until October 2017, during conversations with Bill Lott, the existence of payments that Mr. Moszkowski had allegedly sought to conceal from him. That assertion is contradicted by documents: the payments concerned had already been taken into account by Mr. Howard himself in financial documents that he prepared on the basis of information provided in 2010, 2011 and 2012. Then, in March 2014, Mr. Moszkowski provided him with the exact details of those payments together with the corresponding accounting and banking records. Accordingly, had Mr. Moszkowski been able to present these matters to the Court and draw its attention to those existing documents, they could have had a decisive impact on the assessment of the facts and on the outcome of the litigation.

This situation directly violates the adversarial principle and, more broadly, the rights of the defense, which constitute fundamental requirements of French and international procedural public policy.

Unfortunately, this was not an isolated occurrence, since the federal court had previously refused to allow Mr. Moszkowski to appear remotely or to be excused from appearing: at the June 17, 2020 trial, Mr. Moszkowski could not travel to the U.S. trial because of the Covid-19 pandemic and the presidential proclamation suspending entry into the United States by persons coming from the Schengen Area. Personal participation was particularly important, especially because the opposing parties were thereby free to present facts that Mr. Moszkowski considers false and that he could have contradicted with supporting evidence.

In proceedings for exequatur, however, a French court cannot recognize a foreign judgment rendered under conditions incompatible with these fundamental requirements.

Consequently, this violation of procedural public policy prevents recognition in France of the judgment at issue and, as a result, prevents the granting of exequatur.

Impossibility of granting exequatur because of the violation of public policy resulting from damages awarded by the U.S. court in an amount three times greater than the actual loss:

The U.S. judgment for which exequatur is sought ordered Mr. Moszkowski, among other things, to pay damages three times greater than the actual damages suffered.

Indeed, as appears in particular from the terms of the summons and the judgment, the amount awarded represents nearly three times the amount of the actual loss alleged by the plaintiffs.

Such an award imposes on Mr. Moszkowski an amount far exceeding the compensatory function traditionally associated with damages.

Under French law, compensation for harm is intended, insofar as possible, to place the victim in the position he or she would have occupied had the harmful event not occurred. It may not result in the victim's enrichment or permit the imposition of a private sanction that is manifestly excessive in relation to the harm actually suffered.

Here, the award entered by the U.S. court far exceeds compensation for the alleged harm, since it imposes on Mr. Moszkowski a financial burden representing nearly three times that harm.

It is for the French court to verify that the effects in France of the foreign judgment are not manifestly incompatible with the essential principles of French international public policy.

In this respect, enforcement in France of a manifestly disproportionate monetary award conflicts with the fundamental requirements associated with the principle of full compensation for harm and the prohibition of manifestly excessive compensation.

The excessive nature of the award is all the less acceptable because Mr. Moszkowski disputes both the existence and the extent of the harm alleged by the plaintiffs, while the conditions under which the award was entered were also affected by the violations of the adversarial principle described above.

Under these circumstances, enforcement in France of the monetary award at issue would be contrary to French international public policy.

Likewise, an award three times lower, as requested in the alternative by the plaintiff, would be incompatible with French public policy because the award was entered without Mr. Moszkowski being able to defend himself and present his observations.

It should be recalled that this award was entered by the U.S. judge solely on the basis of a simple demand letter.

Furthermore, the financial flows relied upon are successively characterized as corporate income, irregular distributions, or receivables, without any consistent characterization being adopted or any contractual basis being identified.

For all these reasons, the French court cannot grant exequatur of the U.S. judgment.

I ARTICLE 37 OF LAW No. 91-647 OF JULY 10, 1991:

Mr. Marc MOSZKOWSKI is the beneficiary of full legal aid (Exhibit No. 12).

In view of his financial circumstances, DeepGulf Inc., as the unsuccessful party and a non-beneficiary of legal aid, is able to bear the costs and attorneys' fees not included in taxable costs that the legal-aid beneficiary would have incurred had he not received such aid, which are assessed at €3,000.

Accordingly, in consideration of waiving the State contribution, Maître Mallory DE SOUSA, counsel for the defendant, requests that DeepGulf Inc. be ordered to pay her €3,000 pursuant to Article 37 of the aforementioned law.

Costs shall be borne by DeepGulf Inc.

FOR THESE REASONS

The Draguignan Judicial Court is respectfully requested to:

- DENY DeepGulf Inc.'s application seeking to have the decision No. 2018 CA 000543 rendered on September 3, 2025 by the Escambia County Court, Florida, declared wholly or partially enforceable in France;
- ORDER DeepGulf Inc. to pay Maître De Sousa, provided that she waives receipt of the State contribution under legal aid, the sum of €3,000 pursuant to Article 37 of Law No. 91-647 of July 10, 1991;
- ORDER DeepGulf Inc. to pay all costs.

SUBJECT TO ALL RIGHTS AND RESERVATIONS

September 24, 2026

Mallory De Sousa
Attorney



SCHEDULE OF EXHIBITS:

1. Order remanding the case from the federal court to the state court dated May 5, 2021
2. Docket history before the Escambia County Court
3. Mr. Moszkowski's April 15, 2025 request to be excused from appearing at trial for health and financial reasons
4. Notice of supplemental medical evidence submitted by Mr. Moszkowski on May 28, 2025
5. Mr. Moszkowski's June 17, 2025 request to be excused from appearing at trial
6. Mr. Moszkowski's defense submissions dated February 20, 2025 concerning the lack of information about Toke Oil & Gas
7. Mr. Moszkowski's defense submissions dated May 8, 2025 summarizing all of his pleadings and exhibits
8. Mr. Moszkowski's Initial Brief of Appellant challenging judgment No. 2018 CA 000543 of September 3, 2025
9. Summary Judgment dated January 27, 2020
10. Amended Summary Judgment correcting a clerical error, dated July 2, 2020, concerning the January 27, 2020 judgment
11. Complaint filed by Mr. Moszkowski in January 2026 before the federal court (French version)
12. Full legal-aid decision No. N-83050-2026-001706 dated April 15, 2026
13. Revision of the Articles of Toke Oil and Gas dated March 27, 2013 appointing Mr. Moszkowski as President